

26NWCV00749 26NWCV00749

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 26NWCV00749 Hearing Date: August 14, 2026 Dept: P

DESTINY CLISBY v. BIG FUN

FOODS, ET AL.

CASE NO.: 26NWCV00749

HEARING: 08/14/2026 @ 9:30 AM

#10

TENTATIVE ORDER

Counsel Benjamin Sasounian's motion to be relieved as
counsel for Plaintiff Destiny Clisby is GRANTED.

This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have
appeared in the case.

Moving party to give notice.

Counsel Benjamin Sasounian (Counsel) moves to be relieved
as counsel for Plaintiff Destiny Clisby (Plaintiff).

Background

On February 27, 2026, Plaintiff filed this premises
liability action against Defendants Big Fun Foods, Jack in the Box Inc., and
Does 1 through 50. This action arises out of injuries Plaintiff sustained on
March 2, 2024, after slipping and falling on a liquid in a restroom at the

restaurant located at 5747 Lakewood Blvd, in the City of Lakewood, County of Los Angeles, State of California. (Complaint, ¶¶ 8-11.) The complaint asserts two causes of action: (1) premises liable and (2) general negligence.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Plaintiff.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Plaintiff. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Plaintiff. Specifically, Counsel states that there has been a breakdown of the attorney-client relationship and communication. Counsel provides a proposed order on Form MC-053 and proof of service of each document to the parties in this action. Therefore, the Court finds that Counsel has fully complied with the requirements under California Rules of Court, rule

3.1362.

Accordingly, Counsel's motion to be relieved as counsel for Plaintiff Destiny Clisby is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.